

9. 9:00 AM CASE NUMBER: C25-02471

CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP

***HEARING ON MOTION IN RE: ORDER COMPELLING INDEPENDENT FORENSIC ACCOUNTING AND STAYING ENFORCEMENT PENDING REVIEW**

FILED BY:

TENTATIVE RULING:

Plaintiff Kranti Kapre ("Plaintiff") filed a Motion for Order Compelling Independent Forensic Accounting and Staying Enforcement Pending Review on December 15, 2025 (the "Motion"). The Motion was set for hearing on May 4, 2026.

Background

Defendant Clear Recon Corp ("Defendant") appeared in this action by way of a Demurrer filed February 17, 2026 and set for hearing on June 29, 2026.

No Proof of Service was filed with the moving papers. Nor does not appear that Defendant was served with the Motion after Defendant's appearance in the case.

Analysis

Plaintiff has failed to properly serve the Motion on the opposing party. For that reason alone, the Motion is procedurally defective.

Even if it had been properly served, no basis has been shown for the Court to order a "court-supervised forensic accounting." There is no cause of action pled in the operative complaint for an accounting nor any prayer for such relief in that pleading. No other authority has been articulated for the right to a "court-supervised forensic accounting" at this stage of the proceedings.

The other relief sought is unclear and no basis has been shown for such relief. While difficult to parse, the Motion also appears to reference seeking to amend the complaint. The Motion is procedurally defective to the extent it is intended to be some sort of request for leave to amend.

To the extent judicial notice was requested in connection with the Motion, it is DENIED.

Disposition

The Court finds and orders as follows:

1. The Motion is DENIED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-02705

CASE NAME: TRACY PITTS VS. CONTRA COSTA COUNTY

***HEARING ON MOTION IN RE: SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL CCP 128.7**

FILED BY: CONTRA COSTA COUNTY

TENTATIVE RULING:

Defendant Contra Costa County ("Defendant") brings a motion for sanctions ("Motion") pursuant to Code of Civil Procedure section 128.7, against Plaintiff Tracy Pitts ("Pitts") and Plaintiff's counsel of record, Nicolis Peters ("Counsel" together with Pitts, "Plaintiff"), for the amount of \$5,250.

Defendant asserts that Plaintiff and Counsel are maintaining an action against Defendant without factual or legal merit and are pursuing the lawsuit against Defendant in bad faith.

For the reasons set forth below, the motion for sanctions is DENIED.

Background

Plaintiff Pitts alleges that on October 7, 2024, in the course and scope of her employment with AC Transit, she was making a stop at the bus area at the end of Campus Drive. (Complaint, p. 4.) She exited her vehicle and fell down on deteriorated concrete, injuring her right ankle and knees. (*Ibid.*) Plaintiff filed a claim with Defendant regarding the incident on April 2, 2025. (Monika L. Cooper Decl. ISO Motion [“Cooper Decl.”], ¶ 2, Exh. A.) Defendant rejected the claim on May 13, 2025. (*Ibid.*) On September 19, 2025, Plaintiff sued Contra Costa City College, the City of San Pablo, and Contra Costa County for premises liability in relation to the fall. (Complaint, pp. 1-4.)

On Monday, November 3, 2025, Defendant reached out to Plaintiff to informally request dismissal of the lawsuit; stating, “Contra Costa County does not own, control, or maintain the area at issue in your lawsuit. I am attaching a clip of the website showing that Campus Drive, depending on the area, could be in either the City of Richmond or the City of San Pablo. It is not, however, in unincorporated Contra Costa County.” Defendant attached a screen clipping of a website showing Campus Drive and Defendant’s view of what the city limit boundary lines reflected. (Cooper Decl., ¶ 3, Exh. B.) After no response, Defendant emailed again on Friday, November 7, 2025, saying, “I’m following up on my email from Monday as I did not hear back from you. Are you intending to dismiss the County?” (*Id.*, at ¶ 4, Exh. C.) That same day, Plaintiff responded that “I am reviewing the file and will have an answer shortly.” (*Id.*, at ¶ 5, Exh. D.)

Subsequent to this, on November 14, 21, 24, and 25th, Defendant sent follow-up emails requesting dismissal, and at times stating that the action against the county was frivolous and in bad faith. (Cooper Decl., ¶ 7, Exh. E.) The final email stated, “Due to your failure to dismiss the County, or even engage in a professional discussion, we will file an answer and serve you with our motion for sanctions tomorrow.” (*Ibid.*)

On November 26, 2025, Defendant served a copy of the instant Motion on Plaintiff. (Proof of Service Re Defendant’s Motion for Sanctions, pp. 2-3; Opposition, p. 4:19-21.) The 21-day safe harbor was satisfied on December 17, 2025. At this time, Defendant again reached out to Plaintiff to request a dismissal and provide a brief extension of time until December 19, 2025, at noon, before filing the motion for sanctions. (Supp. Cooper Decl., ¶ 3, Exh. A.) On December 19, 2025, Plaintiff reached out and stated:

If you file your motion I will seek sanction[s] through an opposition. You seem to be trying to bring a motion for sanctions that you will prevails [*sic*] on a motion for summary judgement. It would be improper.

Currently, nobody has accepted responsibility. I informed you that I am waiting for the other sides to answer. I have conferred with the City, but not the college.

You can wait until the parties are answered and I have discovery stating the County is not involved in the maintenance or repairs of the area. Or you can file your motion, which I will then also seek sanctions, and start with my discovery against the County first, instead of the College and City.

You and everyone else [are] claiming they are not liable so far.

(Supp. Cooper Decl., ¶ 3, Exh. A.) Defendant responded one final time to say that unless Plaintiff dismissed Defendant with prejudice by noon on Monday, December 22, 2025, Defendant will file its sanctions motion. (*Ibid.*)

Legal Standard

Code of Civil Procedure section 128.7 imposes standards for counsel presenting a pleading to the court. Counsel presenting the pleading certifies “to the best of the person’s knowledge, information, and belief, formed after an inquiry reasonable under the circumstances,” that the pleading is not presented for an improper purpose, such as harassment or delay, and that there is a basis in fact and in existing law, or at least a “nonfrivolous argument for the extension, modification, or reversal of existing law” for the positions asserted. (Code Civ. Proc., § 128.7, subd. (b)(1)-(3).)

“[T]o obtain sanctions, the moving party must show the party’s conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if ‘any reasonable attorney would agree that [it] is totally and completely without merit.’ ” (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1205.) Even if the Court finds a violation of Code of Civil Procedure section 128.7, subdivision (b), “Section 128.7, subdivision (c) does not require the imposition of monetary sanctions upon the finding of a violation of section 128.7, subdivision (b); rather, it gives the trial court discretion to impose sanctions based on such a finding.” (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 422.) The Court’s determination whether to award sanctions is reviewed for abuse of discretion, and will not be overturned unless the wrong committed was so serious it amounts to “ ‘a manifest miscarriage of justice.’ [Citations, internal quotation marks omitted.]” (*Id.*, [quoting *Sabek, Inc. v. Engelhard Corp.* (1998) 65 Cal.App.4th 992, 1001].)

Analysis

Defendant argues that there can be no dispute that it has no place in this dangerous condition case. (MPA ISO Motion, p. 1.) Defendant “has repeatedly told plaintiff’s counsel that it does not own, control, or maintain the area where plaintiff allegedly fell. Plaintiff and her counsel are therefore maintaining this action against the County without any valid legal or factual basis.” (*Id.*, at pp. 1-2.) Defendant asserts that Plaintiff’s lawsuit against it is frivolous, has no legal or factual merit, and was presented for an improper purpose, such as to harass. (*Id.*, at p. 4:5-20.) Defendant argues that “Plaintiff and her counsel’s maintenance of this case against the County in the absence of any evidence of the County’s role in plaintiff’s injuries—and in the face of direct and unequivocal evidence showing an absence of liability—renders plaintiff’s claims against the County factually and legally frivolous.” (*Id.*, at p. 4:23-26.) Defendant asks for the Court to sanction Plaintiff \$5,250. (*Id.*, at p. 7.)

Plaintiff argues that the Court should deny the Motion for three independent reasons: (1) the claims against Defendant are neither factually nor legally frivolous. At the time the complaint was filed,

genuine ambiguity existed regarding property ownership and jurisdiction at the Campus Drive Bus Stop at Contra Costa College; (2) Defendant failed to comply with the strict compliance necessary for the safe harbor requirement; and (3) the requested fee award is excessive and inadequately supported. Plaintiff also distinguished a case relied on heavily by Plaintiff, *Carroll v. Cal.* (1990) 217 Cal.App.3d 134.

On reply, Defendant argues that the safe harbor provision requirements have been met and that sanctions are warranted because “Plaintiff continued to pursue this action against the County despite direct evidence that the location of the subject incident was not within the County’s jurisdiction.” (Reply, p. 4.) Defendant contests Plaintiff’s attempt to distinguish *Carroll* due to the developed discovery record in that case by saying that the court in *Carroll* held that “At the minimum, this term requires that the Plaintiffs’ attorney have some articulable fact or facts to conclude that a particular person or entity should be initially included in the lawsuit as a party-defendant.” (*Carroll v. Cal.* (1990) 217 Cal.App.3d 134, 142.)

First, the Court finds that Defendant satisfied the safe harbor provision. (Proof of Service Re Defendant’s Motion for Sanctions, pp. 2-3; Opposition, p. 4:19-21.)

Second, in *Carroll v. Cal.* (1990) 217 Cal.App.3d 134, the case in which both parties rely on to analogize and distinguish the instant situation, the Court notes that not only had discovery been propounded and responded to in that matter, but the government entity trying to get dismissed provided the plaintiff with:

a signed declaration of Dick Beckley, an associate transportation engineer with the right-of-way engineering section, department of transportation, district 8, San Bernardino, California. Beckley stated under penalty of perjury that the State did not have a proprietary interest in the intersection. His declaration further stated that the State was not a party to any contractual agreements related to the accident site, either at the time of the accident or when the declaration was signed, nor was the intersection under control or maintenance of the State.

(*Carroll v. Cal.* (1990) 217 Cal.App.3d 134, 139.)

Here, no such declaration was provided to Plaintiff by Defendant in Defendant’s effort to get Plaintiff to dismiss this case. Instead, Defendant sent attorney-drafted emails demanding to be dismissed and declaring—not under oath—that Defendant did not own, control, or maintain the area at issue in this lawsuit. (See Cooper Decl., ¶¶ 1-12, Exhs. A-E.) This distinction is relevant, as it would have been tangible evidence from which to conclude that Defendant was not a proper party to the instant lawsuit.

Third, Defendant cites the *Carroll* case for the proposition that “ ‘At the minimum,’ a plaintiff’s counsel must ‘have some articulable fact or facts to conclude that a particular person or entity should be initially included in the lawsuit as a party-defendant.’ ” (Reply, p. 5:4-6.) However, the issue in *Carroll* involved defense costs obtainable via Code of Civil Procedure section 1038, and this Motion is one for sanctions that has been brought pursuant to Code of Civil Procedure section 128.7. (*Carroll, supra*, 217 Cal.App.3d at 139.) Section 1038 deals with “whether or not the plaintiff, petitioner,

cross-complainant, or intervenor brought the proceeding with reasonable cause and in the good faith belief that there was a justifiable controversy under the facts and law which warranted the filing of the complaint..." (Code of Civ. Proc., § 1038, subd. (a).) Section 128.7 deals with: (1) whether the claims are brought for an improper purpose, such as to harass or cause delay; (2) whether legal contentions are warranted by existing law or a nonfrivolous argument for an extension, modification, etc., of the law; and (3) whether the allegations have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (Code of Civ. Proc., § 128.7, subd. (b).) These are distinct standards and it is not clear that one can apply the standard applicable to Section 1038 to Section 128.7.

Finally, under Code of Civil Procedure section 128.7, "to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if 'any reasonable attorney would agree that [it] is totally and completely without merit.' " (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1205.) Here, plaintiff Pitts, an AC Transit driver, was allegedly injured at an AC Transit bus stop in a city within Contra Costa County. It cannot be said that any reasonable attorney would agree that suing the county in this situation for premises liability is *totally and completely without merit*. This also goes to subdivision (b)(3) of Section 128.7, which asks "whether the allegations have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery."

Ruling

For the reasons analyzed above, Defendant's motion for sanctions pursuant to Code of Civil Procedure section 128.7 is DENIED.

11. 9:00 AM CASE NUMBER: C25-03580
CASE NAME: BETTY VETRO, BY AND THROUGH HER SUCCESSOR-IN-INTEREST, NICK VETRO VS. MARTINEZ SNF HEALTHCARE LLC
HEARING ON PETITION IN RE: BRING ELDER ABUSE ACTION IN THE NAME OF BETTY VETRO, DECEASED
FILED BY: VETRO, NICK
TENTATIVE RULING:

Plaintiff Nick Vetro ("Plaintiff") filed a petition pursuant to Welfare and Institutions Code 15657.3(d) for leave to prosecute the Pending Action on December 17, 2025 (the "Petition"). The Petition was set for hearing on May 4, 2026. The Motion is unopposed.

Background

The Complaint herein was filed on December 4, 2025 by BETTY VETRO, by and through her successor-in-interest, NICK VETRO (the "Pending Action").

The Petition is supported by NICK VETRO's declaration pursuant to Code of Civil Procedure section 377.32 (the "Supporting Declaration"). See Motion, **Exhibit A**.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure